

26STCV02217 26STCV02217

County: los-angeles

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Case Number: 26STCV02217 Hearing Date: July 30, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

FAITH

NATHANIEL BECK,

Plaintiff,

vs.

SAUGUS

UNION SCHOOL DISTRICT, et al.,

Defendants.

Case No.:

26STCV02217

Hearing

Date:

July 30, 2026

ORDER

DEEMING DEFENDANTS' DEMURRER WITH MOTION TO STRIKE MOOT

I. BACKGROUND

Plaintiff Faith Nathaniel

Beck ("Beck") reported believed misconduct by Defendant Charlotte Spainhower ("Spainhower") to appropriate personnel. Following this report, Spainhower and agents of Defendant Saugus Union School District ("SUSD") allegedly engaged in a retaliatory campaign against Beck. In addition, Defendants allegedly harassed Beck via misgendering and 'deadnaming' Beck. Beck sued Defendants for sixteen causes of action, including whistleblower retaliation, defamation, and gender-based harassment and discrimination.

On March 25, 2026, Defendants filed the instant demurrer with motion to strike.

On June 10, 2026, Beck filed a proposed amended complaint.

II. LEGAL STANDARD

Code

of Civil Procedure section 430.10[1]

states: "The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading; (b) The person who filed the pleading does not have the legal capacity to sue; (c) There is another action pending between the same parties on the same cause of action; (d) There is a defect or misjoinder of parties; (e) The pleading does not state facts sufficient to constitute a cause of action; (f) The pleading is uncertain. As used in this subdivision, uncertain includes ambiguous and unintelligible; and (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct."

As

a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004))

116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where

a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment.

(Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.)

However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Pursuant

to section 472, a party may amend its pleading once without leave of court. If the amendment is filed after a demurrer or motion to strike is filed, it must be filed and served no later than the date for filing an opposition to the demurrer or motion to strike. (Ibid.)

III. DISCUSSION

Pursuant to section 472, a

party may amend its pleading once, without leave of court, following the filing of a demurrer or motion to strike, so long as it is filed and served by the date for filing an opposition to those pleadings. The date for filing an opposition to demurrer is nine court days prior to the hearing on the pleadings. (§ 1005, subd. (b).)

Beck’s initial complaint

was filed on January 22, 2026. On March 13, 2026, Defendants filed a special motion to strike (or “anti-SLAPP motion”). Following the filing of the motion, Beck filed a proposed FAC on April 8, 2026. As clarified by the Court, the April FAC was never operative. (See May 1, 2026, minute order.) A plaintiff may not freely amend a complaint when an anti-SLAPP motion is

pending; Beck needed to seek leave of court to file an amended complaint, at that time. As Beck did not seek leave, the April FAC never amended the initial complaint.

Following the Court's ruling on the anti-SLAPP motion, granting it in part, Defendants filed the instant demurrer with motion to strike to the original complaint. Upon filing of a demurrer, Beck was entitled to file one amended complaint pursuant to the timeline outlined in section 472. As this demurrer was always set to be heard on July 30, 2026, the amended complaint needed to be filed by July 17, 2026, to be deemed operative without leave of court. Beck filed the "Second Amended Complaint" ("June FAC") on June 10, 2026, far before the deadline.

Although labeled the "Second Amended Complaint," the June FAC is effectively the first amended complaint, as Beck's April FAC should have been rejected upon filing. The mere fact a party has filed a rejected amendment does not preclude them from otherwise utilizing their one-time statutory right to amend under section 472. As Beck's June FAC was filed and served prior to the opposition due date, it is the new operative complaint. Defendants' demurrer with motion to strike to the original complaint is MOOT.

As there was potential dispute as to the operative complaint, the Court orders Defendants' time to file a demurrer is to run from the hearing on this matter.

IV. CONCLUSION

Defendants' demurrer to the initial complaint is MOOT.

Beck is to give notice.

DATED:

July 30, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.

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FAITH
NATHANIEL BECK

Plaintiff,

vs.

SAUGUS

UNION SCHOOL DISTRICT, et al.

Defendants

Case No.:

26STCV02217

Hearing

Date:

July 23, 2026

ORDER

DENYING MOTION TO SEAL

I. BACKGROUND

Plaintiff Faith Nathaniel Beck ("Beck") reported believed misconduct by Defendant Charlotte Spainhower ("Spainhower") to appropriate personnel. Following this report, Spainhower and agents of Defendant Saugus Union School District ("SUSD") allegedly engaged in a retaliatory campaign against Beck. In addition, Defendants allegedly harassed Beck via misgendering and 'deadnaming' Beck. Beck sued Defendants for sixteen causes of action, including whistleblower retaliation, defamation, and gender-based harassment and discrimination.

On June 17, 2026, Beck filed the instant motion to seal. SUSD filed an opposition. Beck filed a reply brief.

II. LEGAL STANDARD

Under

California Rules of Court rule 2.550, subdivision (d)[1]

"[t]he court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the

overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest."

III. DISCUSSION

Beck requests the Court seal the "unredacted versions of the following exhibits: Exhibit A – Clinical Summary; Exhibit B – Health Conditions Summary; and Exhibit C – Medication List." (Mot., p. 2 ¶¶ 4-8.)

It is unclear from the text of the moving papers as to what papers these exhibits are related. According to Defendants' opposition, these papers are not connected to any motion, application or other recognized court filing. (Opp., p. 2 ¶¶ 1-10.) Beck's reply further confirms there is no separate motion to which these exhibits are related but are only offered in connection with the instant motion to seal.

Pursuant to rule 2.550, subdivision (a)(3), rules regarding sealed records do not apply to discovery motions, records filed or lodged in connection with discovery motions or proceedings. As no explanation is provided in what capacity, outside of the motion to seal, these exhibits are relevant, the Court cannot determine these exhibits are not offered in connection with discovery motions or proceedings.

Even when evaluated on the merits, the Court does not find a basis to allow these documents to be filed under seal absent context. A record may only be filed under seal if the Court finds all required elements are established. (Rule 2.550, subd. (d).) A moving party must demonstrate: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. (Ibid.)

Although Beck's medical privacy may constitute an overriding interest that overcomes the right of public access, satisfying the first element, no other element is satisfied. The overriding interest does not support sealing the records, as the records

have been offered by Beck, devoid of context. Beck has chosen to put the documents at issue without offering said documents in support of any actual motion other than the motion to seal. There is no substantial probability Beck's right to medical privacy will be prejudiced if the records are not sealed because there is no indication these records will be publicly available outside of this motion. The proposed sealing is not narrowly tailored, because Beck requests these documents be redacted without any context. Less restrictive means exist to achieve the overriding interest of protecting Beck's medical privacy by simply not entering the records into the Court record, in any capacity, absent other relevant motion work.

The Court denies the motion,
evaluating both procedural issues and merit.

IV. CONCLUSION

Plaintiff Faith Nathaniel Beck's motion to seal is DENIED.

DATED:

July 23, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

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references are to the California Rules of Court